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North Carolina
**Office of the
Commissioner of Banks**

(/)



Mortgage Loan Originator Licensing Requirements

Licensing Overview

The “North Carolina Secure and Fair Enforcement (S.A.F.E.) Mortgage Licensing Act”, codified in [NCGS Chapter 53, Article 19B](#) (https://www.ncleg.gov//EnactedLegislation/Statutes/PDF/ByArticle/Chapter_53/Article_19B.pdf), requires any person engaged in the business of making or brokering residential mortgage loans to be licensed, unless an exemption applies, pursuant to [NCGS § 53-244.040\(d\)](#) (<https://www.ncleg.gov//gascripts/statutes/statutelookup.pl?statute=53-244.040>).

A Mortgage Loan Originator (MLO) is an individual who for compensation or gain or in the expectation of compensation or gain, whether through contact by telephone, by electronic means, by mail, or in person with prospective borrowers, does any of the following:

1. Takes a residential mortgage loan application, or offers or negotiates the terms or conditions of a residential mortgage loan,
2. Accepts or offers to accept an application for a residential mortgage loan,
3. Solicits or offers to solicit an application for a residential mortgage loan,
4. Offers or negotiates the terms or conditions of a mortgage loan, or
5. Issues residential mortgage loan commitments or interest rate guarantee agreements to prospective borrowers.

A mortgage loan originator does not include an individual engaged solely as a loan processor or underwriter, a person that only performs real estate brokerage activity, a person solely involved in timeshare instruments, an individual who is a salesperson for a licensed manufactured

housing retailer that performs administrative and clerical tasks, an individual acting solely as a loss mitigation specialist, or an individual who only informs a prospective borrower of the availability of persons engaged in the mortgage business or takes only the name and contact information of the prospective borrower. Information such as social security number, credit score, credit or employment history, or specific rates of a desired mortgage loan can only be solicited and accepted by a licensed mortgage loan originator. See N.C.G.S. § 53-244.030(21) for more details.

Approved licenses may be viewed by visiting [Find Licensees \(/financial-institutions/mortgage/search-mortgage-licensees\)](#).

Login to the [NCCOB Online website](#) (<https://www.nccob.gov/online/NMLS/LoanOfficerLogin.aspx>) to print a license

Testing and Education Requirements

Applicants for a mortgage loan originator license must have passed, within the five years immediately preceding the date of application, the test required under N.C.G.S. §53-244.080. However, an individual applicant holding a valid mortgage loan originator license in any other state or territory or a registered mortgage loan originator shall receive credit for the passage of the test under N.C.G.S. §53-244.080, except as otherwise provided in N.C.G.S. §53-244.080(e).

To be eligible for a mortgage loan originator license, an individual shall have satisfactorily completed, within the three years* immediately preceding the date of application, at least 24 hours of pre-licensing education in a classroom or classroom equivalent setting and approved by NMLS including:

1. Three hours of federal statutes and regulations;
2. Three hours of ethics, including instruction on fraud, consumer protection, and fair lending issues;
3. Two hours of training related to lending standards for nontraditional mortgage products; and
4. Four hours of North Carolina statutes and regulations.

Note: Twelve hours of mortgage related instruction, provided by an approved NMLS provider, and commonly referred to as “electives”, is taken in addition to the above required education to meet the 24-hour requirement.

* An individual applicant holding a valid mortgage loan originator license in any other state or territory shall receive credit for 20 hours of education completed under N.C.G.S. 53-244.070(e) if the individual has completed all required continuing education for the preceding year.

N.C.G.S. 53-244.070(e) states, “... the applicant shall be given credit for those hours toward the completion of the prelicensing requirements in this State, **other than the hours** required under subdivision (a)(4) of this section.” Subdivision (a)(4) requires four hours of North Carolina statute and rules.

For mortgage loan originator applicants that qualify for temporary authority, the required prelicensing education must be taken within 120 days of a complete application (see the Economic Growth, Regulatory Relief and Consumer Protection Act ([S.2155, SEC. 1518](#) (<https://mortgage.nationwidelicensingsystem.org/slr/common/Documents/BILLS-115s2155es.pdf>))).

A licensed mortgage loan originator must annually complete at least eight hours of continuing education, which shall include:

1. Three hours of federal statutes and regulations;
2. Two hours of ethics, including instruction on fraud, consumer protection, and fair lending issues;
3. Two hours related to lending standards for the nontraditional mortgage products marketplace; and
4. One hour of North Carolina statutes and rules.

Please see [NC Prelicensing Education Requirements](#) (/financial-institutions/mortgage/licensing-information/mortgage-loan-originator-licensing-requirements/nc-prelicensing-education-requirements) for additional information. Education courses for pre-licensing and continuing

education are found in [NMLS](#)

(<https://mortgage.nationwidelicensingsystem.org/profreq/education/Pages/default.aspx>).

Who To Contact

Please see our [Contact Us \(/financial-institutions/mortgage/contact-mortgage-licensing-staff\)](#) page for contact information.